

TENTATIVE RULINGS
Judge SHEILA RECIO, Dept. W8

Law & Motion is heard on Fridays at 9:30 a.m., *unless specially set.*

CIVIL COURT REPORTERS: Department W8 does not provide the services of an official court reporter for law and motion hearings. Please see the court's website for rules and procedures for court reporters obtained by the parties.

POSTING TENTATIVES: Department W8 endeavors to post tentative rulings for law and motion hearings by 5 p.m. on Thursdays. **Do NOT call the Department for a tentative ruling if none is posted.** The court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been prepared.

SUBMITTING ON THE TENTATIVE: If ALL sides intend to submit on the tentative ruling, please advise the Department's clerk or courtroom attendant by calling (657) 622-5908. If so advised, the tentative ruling shall become the court's final ruling and the prevailing party shall file and serve a Notice of Ruling and if appropriate, prepare a Proposed Order pursuant to Rule 3.1312 of the California Rules of Court. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

NO APPEARANCES: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court will determine if the matter is taken off calendar, the tentative ruling becomes the final ruling, or a different order is issued at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

REMOTE APPEARANCES: Department W8 conducts non-evidentiary proceedings, including law and motion via Zoom through the court's online check-in process available through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings>. All counsel and self-represented parties appearing for such hearings **must check-in at least 5 minutes before** the 9:30 a.m. hearing on Friday.

The court encourages the parties and attorneys to take advantage of remote appearances for non-evidentiary hearings to reduce travel time, parking costs, and potential hearing delays. However, keep in mind that potential technological or audibility issues could arise when using remote technology, which may require a delay of or halt the proceedings. To help

avoid such, please log in and test your equipment in advance of the hearing. Also, if technological or audibility issues arise during the proceeding, please call **(657) 622-5908**.

All remote video participants shall comply with the court's "**Guidelines for Remote appearances**", found at <https://www.occourts.org/system/files/guidelinesforremoteproceedings.pdf>.

IN-PERSON: Parties preferring to appear in-person for a law and motion hearing may do so, consistent with Section 367.75 of the Code of Civil Procedure and Orange County Local Rule 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

September 4, 2026

#	Case Name	
1	All State Printing, LLC. vs. GSO Printing LLC	<u>Motion to Be Relieved as Counsel of Record</u> The court GRANTS KOLMOGOROV LAW, P.C.'s unopposed Motion to Be Relieved as Counsel for Defendant GSO PRINTING LLC. The court finds moving attorney meets the requirements set forth in Rule 3.1362 of the California Rules of Court. The orders shall not become effective until the filing of a proof of service showing service of the order on the client. Re corporate party without an attorney: The court notes that Defendant GSO PRINTING LLC may not appear without counsel. (See, e.g., <i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145 ["[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or

		other employee who is not an attorney.”]; <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284, n5 [“In California a corporation may not represent itself, except in a small claims proceeding. This prohibition stems from the notion a corporate representative who would likely appear on behalf of the corporation would be engaged in the unlicensed practice of law.”]. That the party is an LLC is of no moment, as the same rational applies to an LLC. An LLC has similar rights and responsibilities as a corporation – e.g., it is a separate legal entity with its own privileges and liabilities distinct from those of its members, it has the same rights as a corporation to sue and be sued in its own name, it must maintain an agent for service of process. (See Corp. Code, §§ 17701.01 et seq.) As such, the court sets an Order to Show Cause Why the Answer of Defendant GSO PRINTING, LLC, Should Not be Stricken and Default Entered. The OSC is set for October 5, 2026, at 10:00 am in Dept. W08, to be heard with the currently scheduled Case Management Conference. Moving attorney SHALL give notice and file a proof of service within 10 calendar days.
4	Versure, LLC vs. Bonavita Life LLC	<u>Application for Service of Process Through Secretary of State</u> (x2) The court DENIES without prejudice Plaintiff VERSURE, LLC’s applications for order authorizing service of process on Defendant BONAVIDA LIFE LLC through the California Secretary of State. (ROAs 43, 45.) Section 17701.16(c) of the Corporations Code requires proof by affidavit to the satisfaction of the court that process against a limited liability company or foreign limited liability company cannot be served. Here, Plaintiff submits the Non Service Report of Geroge Craig, Registered California Process Server. (Exh. 1.) Relevant here is the second page submitted within Exhibit 1, pertaining to service of Bonavita Life LLC. Craig states

		that he was informed by the current tenant at 510 W Central Ave Unit B, Brea, CA 92821 that Bonavita was the previous tenant. The current tenant is Wolverine Fire. (See, Exh. 1, p. 2.) Plaintiff does not proffer any evidence however to establish that Bonavita's registered process server resigned, there is no current replacement, or identify the address designated for personal delivery of the process. While these contentions are stated as arguments in the application, argument of counsel contained in a points and authorities are not evidence. (<i>Muskan Food & Fuel, Inc. v. City of Fresno</i> (2021) 69 Cal.App.5th 372, 389-390.) As such, Plaintiff has not made the necessary showing for service of summons upon the Secretary of State pursuant to Corporations Code section 17701.16. The application is therefore DENIED without prejudice. Plaintiff to give notice.
5	Carnations Home, Inc. vs. The Hills Senior Living	<u>Motion to Set Aside Default</u> (Status Conference re Default Judgment) 1. Motion to Set Aside Default The hearing on this motion was continued from 6/26/26. At the 6/26/26 hearing on the motion, the court posted a tentative ruling granting the motion. Plaintiffs requested an opportunity to provide further briefing on an issue that Defendants explicitly raised in reply (i.e., for relief under Section 473(d) of the Code of Civil Procedure). The motion was originally noticed under subsection "b" of Section 473. At Plaintiff's request, the court continued the hearing on the motion to allow Plaintiffs to file a supplemental opposition and Defendants to file a supplemental response to the opposition. The parties thereafter filed timely supplemental briefing, which this court has considered.

The court **GRANTS** Defendants CHERRY CERAME, CHRISTOPHER CERAME, and MTE27, INC.'s (the Moving Defendants) motion to set aside their defaults.

RJN: The court **GRANTS** Moving Defendants' requests for judicial notice concerning three court records. (Evid. Code, § 452(d).)

Plaintiffs' supplemental opposition primarily argues that Defendants cannot now challenge the defects in the service of the summons and complaint because Defendants waived those defects by making general appearances approximately five times in this case. The court disagrees.

A general appearance need not be a formal, technical step or act. (*Nam Tai Electronics, Inc. v. Titzer* (2001) 93 Cal.App.4th 1301, 1307). "What is determinative is whether defendant takes part in the particular action which in some manner recognizes the authority of the court to proceed." (*Id.*) "The appearance will be considered 'general' in nature if the defendant acts in a manner, 'showing of a "purpose of obtaining any ruling or order of the court going to the merits of the case.'" (*Id.*)

Here, none of the five examples that Plaintiffs provide constitute a general appearance.

First, Plaintiffs argue that an 4/25/25 letter from Defendants requesting extensions of time to file responses to the complaint constitute a general appearance. An order by a judge extending the time for defendants to respond to a complaint does not constitute a general appearance in the action. (*Davenport v. Superior Court of Cal. in and for Imperial County* (1920) 183 Cal. 506, 509). Here, an informal letter that was never filed with the court does not give rise to a general appearance and it does not go towards obtaining a ruling on the merits of the case.

Second, Plaintiffs argue that a 2/13/26 response to default, Defendants' motion to set aside default, Defendants' appearing at an 4/13/26 conference regarding the default proceedings, and Defendants appearing for a hearing on their motion to st aside default all constitute general

appearances. Each of these actions however have the opposite effect of the court ruling on the merits of the case. Rather than allowing default proceedings to proceed, Defendants, in each of these instances, challenge service as defective and ask the court to do the opposite of determining the merits of this case. Rather, Defendants argued that the court lacked jurisdiction due to ineffective service. The court finds that the reasoning of the following case particularly applicable to Plaintiffs' arguments here:

"It is further wholly unthinkable that a void default judgment predicated on such a void order for service and such a void entry of default must be upheld upon the purported premise that the motion to vacate the default constituted a general appearance of such nature as to cure the insufficiencies of the void order for service and of the void entry of default based on the void service." (*Batte v. Bandy* (1958) 165 Cal.App.2d 527, 539). Where a defendant is asking to void the entry of default for lack of effective service, "it would be absurd to hold that [defendant's] motion to vacate the default amounted in substance to a consent that the default judgment could be entered against it." (*Id.*) "It would be equally absurd to hold that a motion to vacate the entry of a default, made on the ground that the affidavit and order for the substituted service were void, constitutes a general appearance of such nature as to cure the insufficiency of said affidavit and void order for service, since the purpose of the motion to vacate the default was to challenge the sufficiency of said affidavit and order for substituted service." (*Id.*)

The court agrees with the reasoning in *Batte*. It would be absurd to hold that Defendants' actions in attempting to set aside a default that Defendants contend are based on ineffective service constitutes a general appearance.

For these reasons, Plaintiffs' arguments in the supplemental opposition does not change the court's analysis or ruling.

As such, the court GRANTS Defendants CHERRY CERAME, CHRISTOPHER CERAME, and MTE27, INC.'s (the Moving Defendants) motion to set aside their defaults.

Where defendants were not properly served with the Summons and Complaint, any defaults entered against them are void. (See, e.g., *First American Title Ins. Co. v. Banerjee* (2022) 87 Cal.App.5th 37, 42; *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1200.) Moreover, where the default was void, the motion to vacate the default is not subject to the six-month limitation contained in section 473 of the Code of Civil Procedure. (*Braugh v. Dow* (2023) 93 Cal.App.5th 76, 86.)

As explained below, Moving Defendants show they were not properly served with the Summons and Complaint, and Plaintiffs do not show otherwise.

Plaintiffs apparently served all three Moving Defendants at 22800 Savi Ranch Parkway, Suite 200, Yorba Linda, CA 92887 (“Savi Ranch Address”). MTE27 was purportedly personally served through “Allen Medina – Authorized Agent for Service of Process,” while the Cherry Cerame and Christopher Cerame were purportedly served by substituted service, and through “Vanessa B., Office Manager.”

Plaintiffs’ own Complaint, as well as evidence presented by Moving Defendants, show that the Savi Ranch address was not MTE27’s principal address, nor was Allen Medina its authorized agent for service of process.

Instead, MTE27’s principal address, and its mailing address, is 31506 Kailua Drive, Winchester, CA 92596. MTE27’s agent for service of process is 1505 Corporation, California Registered Agent, Inc. (Cherry Cerame Decl., ¶ 4; Christopher Cerame Decl., ¶ 4; see also Compl., ¶¶ 22-24 [alleging that MTE’s principal place of business is the Kailua address].)

Moving Defendants also proffer evidence that neither “Vanessa B.” nor Allen Medina (a co-defendant) are present employees of MTE, nor were they employees at the time of the purported service of the Summons and Complaint. (Cherry Cerame Decl., ¶ 3; Christopher Cerame Decl., ¶ 3.)

Cherry Cerame and Christopher Cerame also declare that they were not served with the Summons and Complaint. (Cherry Cerame Decl., ¶ 6; Christopher Cerame Decl., ¶ 6.)

Apparently, during Plaintiffs' first attempt to serve Cherry Cerame and Christopher Cerame, Allen Medina advised the process server that neither Cherry Cerame nor Christopher Cerame worked at the office. (RJN, Exhs. B and C.)

It appears Plaintiffs knew, or should have known, the Savi Ranch Address was not the correct address to serve any of the three Defendants.

And while Plaintiffs present evidence that Defendants had actual notice of the lawsuit (York Decl., Exh. A), knowledge of a lawsuit is insufficient. The court does not acquire jurisdiction over a defendant simply because they had actual notice of the lawsuit. (See, e.g., *Sternbeck v. Buck* (1957) 148 Cal.App.2d 829, 838-839; *Braugh v. Dow* (2023) 93 Cal.App.5th 76, 88-89 [plaintiff's non-compliance with the service of process rules was an issue of fundamental jurisdiction, rather than a mere technicality, such that the judgment or order is void even in the face of actual notice].)

In sum, the motion is GRANTED. **The entry of default against each of the Moving Defendants is VACATED.** (See ROA 67 [default entered on 4/29/25 against Cherry Cerame]; ROA 70 [default entered 4/29/25 against Christopher Cerame]; and ROA 86 [default entered on 4/29/25 against MTE27, Inc.]

In light of the ruling, **the court sets a Case Management Conference (CMC), set for February 1, 2027 at 10:00 am in Dept. W8.** All appearing parties SHALL file and serve a new and timely case management conference statement at least 15 calendar days prior to the continued hearing as required by the rules, including California Rules of Court rule 3.725 and Local Rule 369. Failure to do so may result in the imposition of monetary sanctions of \$500.00 against the offending party and/or its attorney of record.

The court also sets an Order to Show Cause (OSC) re Sanctions, including Dismissal for Plaintiff's Failure to

		Serve and Prosecute. Plaintiffs are ordered to appear and ordered to file a Proof of Service re Summons and Complaint on all unserved defendant(s) at least 10 court days before the hearing. If Plaintiffs fail to do so, the court will dismiss the action against any unserved defendant at the hearing unless Plaintiffs appear and show good cause otherwise. (See Cal. Rules of Court, rule 3.110(f); Orange County Superior Court Local Rule 381.) The OSC re Sanctions/Dismissal will be the same date, time and place as the new CMC. Plaintiffs to give notice. 2. Status Conference In light of the ruling on the motion to set aside, the court takes the Status Conference re Default Judgment OFF-CALENDAR. As previously mentioned, the Complaint treats all of the defendants together. As such, the court will not proceed with a default judgment against the remaining defaulted defendants until trial or when all of the named defendants have been defaulted or dismissed. Plaintiffs to give notice.
7	Timanus vs. Melrose Recovery LLC.	<u>Motion to Tax Costs</u> The court DENIES Plaintiff TRINA TIMANUS' motion to strike or tax the memorandum of costs filed by counsel for Defendants WALTER YBARRA (Ybarra) and RESTORATIONS HEALTH CARE LLC (Restoration). <i>As against Defendant Ybarra</i>, Plaintiff is clearly the prevailing party. A jury determined found that Ybarra owes Plaintiff \$603,292.00 on the Second Amended Complaint.

Restoration however is also a prevailing party on the Second Amended Complaint, as the jury found in its favor, resulting in a judgment that Plaintiff recover nothing from Restoration.

On 6/3/26, counsel for both Defendants Ybarra and Restorations filed a memorandum of costs (ROA 465), claiming the following:

Item 1 - Filing and motion fees: \$906.20

Item 4 - Deposition costs: \$4,758.80

Item 5 - Service of process: \$1,270.60

Item 14 - Fees for electronic filing or service: \$132.12

A prevailing party is usually entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc., § 1032(b).) If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. (*Foothill-De Anza Comm. College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29; *Wagner Farms, Inc. v. Modesto Irrigation Dist.* (2006) 145 Cal.App.4th 765, 773-74.)

Code of Civil Procedure section 1032(a)(4) defines “prevailing party” as:

the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code Civ. Proc., § 1032.)

“[T]he trial court in its discretion determines the prevailing party, comparing the relief sought with that obtained, along with the parties' litigation objectives as disclosed by their pleadings, briefs, and other such sources. Thus, the trial court determines whether the party succeeded at a practical level by realizing its litigation objectives and the action yielded the primary relief sought in the case.”

(*Friends of Spring Street v. Nevada City* (2019) 33

Cal.App.5th 1092, 1104 [internal quotation and citation omitted].) “If neither party achieves a complete victory on all the contract claims, it is within the discretion of the trial court to determine which party prevailed on the contract or whether, on balance, neither party prevailed sufficiently to justify an award of attorney fees.” (*Scott Co. of California v. Blount, Inc.* (1999) 20 Cal.4th 1103, 1109.)

Fields Law Group represented both Defendants Ybarra and Restorations. On Plaintiff's Second Amended Complaint, Plaintiff was a prevailing party against Ybarra. But Restorations was also a prevailing party because it is “a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (Code Civ. Proc., § 1032(a)(4).) As such, Restorations is entitled to costs.

In her reply, Plaintiff cites to *Wakefield v. Bohlin* (2006) 145 Cal.App.4th 963, which involved the issue of apportionment of costs between husband and wife seller defendants, one of whom was found liable for plaintiff buyer's negligent misrepresentation claim. The appellate court held that the wife defendant was “not entitled to costs as a matter of right because of her unity of interest with [the husband]” and that “[a]ny cost award in her favor is discretionary with the trial court and subject to apportionment.” (*Id.* at 989.)

The prior version of Code of Civil Procedure section 1032 contained language supporting the concept that where jointly represented codefendants presented a unified defense and fewer than all codefendants prevailed, the court had discretion to deny costs to the prevailing codefendants. However, this language was omitted when section 1032 was repealed and replaced in 1986.

Consequently, courts disagree on whether this “unity of interest” concept remains viable. (See *Charton v. Harkey* (2016) 247 Cal.App.4th 730, 741-743, [“unity of interest” concept did not survive 1986 repeal/replacement]; compare *Wakefield v. Bohlin* (2006) 145 Cal.App.4th 963, 984-987 [contra].)

The Court of Appeal in *Charton* stated,

“The 1986 repeal and reenactment of section 1032 ... eliminated any basis to apply the unity of interest exception found in the repealed version. Consequently, we conclude the Legislature intended to eliminate the unity of interest exception as a basis for denying costs to a prevailing defendant who otherwise is entitled to recover costs as a matter of right.”

(*Charton*, 146 Cal.App.4th at 741-742.) There is apparently no published appellate opinion that disapproves or overrules *Charton*, and this court agrees with *Charton* such that Restorations is entitled to recover its costs.

Thus, where coparties jointly incurred costs and fewer than all coparties prevail at the conclusion of trial, the court must apportion costs between the parties based on the reason the costs were incurred and whether the costs were reasonably necessary to the prevailing coparties’ conduct of the litigation. The court cannot simply divide the total costs jointly incurred by all coparties by the number of prevailing coparties. (*Charton v. Harkey* (2016) 247 Cal.App.4th 730, 743.)

In its opposing papers, Defendants filed a declaration from counsel (MATTHEW R. SEIFEN) clarifying that, “The Memorandum of Costs (Summary and Worksheet) seeks recovery of Restorations’ costs in connection with this matter and does not include the costs of Defendant/Cross-Complainant Walter Ybarra.” (Seifen Decl., ¶ 2.)

In its reply papers, Plaintiff does not show or explain how any claimed costs was not borne specifically by Restoration or how any cost was not reasonably necessary to Restoration’s conduct in this litigation. Instead, Plaintiff asserts that differentiating costs between defendants is

		impossible because they share an identical unity of interest, and Plaintiff therefore requests the court grant the motion under the court’s “broad equitable discretion to find that all defendant litigations costs were completely intertwined”. (Repl. Br. at p. 2, lines 5-14.) The court however disagrees that differentiating costs is impossible. For example, the first matter listed in the Cost Memorandum Worksheet is for \$448.50 to answer the Second Amended Complaint. According to the court file, defendants separately answered the Second Amended Complaint. (See ROAs 129 and 136.) The amount requested does not represent fees that would be incurred by more than one defendant. As Defendant Restoration notes in its opposing papers, “Plaintiff has not sought to contest or tax any of the specific items included in [the Cost Memorandum].” (Opp’n Br. at p. 3, lines 10-12.) Accordingly, the court DENIES the motion. Defendants to give notice.
10	Manolelis vs. Staffpay, Inc	<u>P’s Motion to Compel Further RFPs (Set One)</u> <u>D’s Motion to Compel Further Responses to Form Interrogatories (Set One); and</u> <u>RFPs (Set One)</u> <i>1. Plaintiff’s Motion (re RFPs)</i> The court DENIES Plaintiff COLLEEN RUGGIERO MANOLELIS moves to compel Defendant STAFFPAY, LLC to serve further responses to Plaintiff’s Requests for the Production of Documents (Set One) (“RFP”), Nos. 9-11. RFPs 9-11 seek “<u>All communications</u>, including but not limited to emails, text messages, and written correspondence” between Defendant, on the one hand, and on the other hand, (1) Decedent Theo Manolelis

("Theo"), (2) Paragon (Theo's company), and (3) Plaintiff Colleen Manolelis.

To each of these RFPs, Defendant responded by incorporating its general objections and objecting on the basis that the RFPs 1) are overbroad as to time and scope, and 2) seek irrelevant information or information that is equally available to Plaintiff. Subject to those objections, Defendant stated it would meet and confer with Plaintiff about limitations on the temporal and substantive scope of this request. The parties apparently did not agree on any such limitations.

After this motion was filed, Defendant produced documents consisting of over 71,000 pages, some of which were identified to be produced in response to RFPs 9-11. (Supp. Korenaga Decl., ¶ 2, Exhs. B and C.)

Defendant primarily objects on the basis that the RFPs are overbroad and unduly burdensome as to time and scope. The court agrees. The requests provide no time period limitation or subject matter limitation and as such, appears to be a mere fishing expedition. Plaintiff fails to proffer a good cause showing for such broad discovery requests. Notably, Defendant employed Theo for nearly two decades.

Defendant also objects on relevance grounds. Again, the RFPs seek "all communications" between Defendant on the one hand and Theo, Paragon, and Plaintiff on the other hand. While the requests may capture materials that are inadmissible, a litigant's right to discovery is broad. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 551; see also *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301 ["discovery is not limited to admissible evidence"].) The statutory phrase "'subject matter'" is "'broader than the issues' and is not limited to admissible evidence." (*Jessen v. Hartford Casualty Ins. Co.* (2003) 111 Cal.App.4th 698, 711.) At the same time, because the requests are so broadly stated, without a time or subject matter limitation, the requests would likely cover materials clearly irrelevant to this litigation.

Accordingly, the court DENIES the motion in its entirety.

Re sanctions: Defendant requests monetary sanctions against Plaintiff and her counsel in the total sum of \$10,500. Plaintiff sought sanctions of \$8,700 in connection with its motion.

Sanctions are available on a motion to compel a further response to inspection demands. (Code Civ. Proc. § 2031.310 [“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”].) And if the results are mixed, the court has the discretion to apportion sanctions or award no sanctions on any terms as may be just. (See *Mattco Valley Forge v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1437.)

The court finds that under the circumstances, sanctions would be unjust. As such, the court DENIES the requests for sanctions.

Defendant Staffpay to give notice.

2. Defendant’s Motions (re Form Interrogs & RFPs)

The court **GRANTS** Defendant STAFFPAY, LLC’S motions to compel Plaintiff COLLEEN RUGGIERO MANOLELIS to serve further responses to (1) Defendant’s Form Interrogatories (Set One), No. 52, and (2) Requests for the Production of Documents (Set One)(“RFP), No. 33.

Form interrogatory No. 50.2 states, “Was there a breach of any agreement alleged in the pleadings? If so, for each breach describe and give the date of every act or omission that you claim is the breach of the agreement.”

Plaintiff responded, “Plaintiff has alleged causes of action for 1) Conversion, 2) Fraud and 3) Declaratory Relief in this action, not breach of agreement.”

Plaintiff's response is insufficient. Form interrogatory 50.2 does not ask whether the pleadings allege a breach of contract. It asks whether there was a breach of any agreement alleged in the pleadings. Plaintiff is therefore ordered to provide a further response to Form Interrogatory No. 50.2.

RFP No. 33 requests, "All COMMUNICATIONS between THEO and his estate attorneys CONCERNING STAFFPAY since January 1, 2013."

Plaintiff initially responded, "Responding Party objects to this Request on the grounds that it is overbroad in scope and time, unduly burdensome, compound, seeks communications between third parties in which Responding Party was not involved, seeks privileged attorney-client communications, and is vague and ambiguous as to the term "his estate attorneys."

After the motion was filed, Plaintiff served a supplemental response that repeats the same objections and states that, without waiving those objections, Plaintiff "has conducted a further diligent search and reasonable inquiry" and "will comply with this Request and produce all responsive documents in its possession, custody or control."

Based on the supplemental response, Defendant has withdrawn as moot its request for an order compelling Plaintiff to serve a statement of compliance but also argues that Plaintiff invokes the attorney-client privilege while not provided a privilege log.

While Plaintiff states in her opposing brief that Plaintiff "located just one email" responsive to RFP No. 33, Plaintiff also asserts she is not waiving her objections, including based on the attorney-client privilege. As such, it's not clear whether Plaintiff is withholding any document based on attorney-client privilege.

If so, Plaintiff is ordered to provide within 20 days a privilege log pursuant to Section 2031.240(c) of the Code of Civil Procedure. The log must identify each document for which privilege is claimed, its author, recipients, date of preparation, and the specific privilege or work product

		protection claimed. Alternatively, Plaintiff may serve a statement within 20 days explaining that no document is being withheld based on privilege. For clarity, Plaintiff's non-privilege objections are OVERRULED. Re sanctions: Defendant seeks monetary sanctions of \$17,850.00, consisting of 17 hours at an hourly rate of \$1,050.00. (Grant Cofer Decl., ¶ 8.) The request appears excessive in light of the issues raised. The court finds the just and reasonable amount of fees to award here is \$2,100.00. (Code Civ. Proc., §§ 2030.300, 2031.310.) In sum: Consistent with this ruling, Plaintiff SHALL within 20 days: (A) serve a further response to Defendant's Form Interrogatory (Set One), No. 52; (B) serve a privilege log/statement concerning Defendant's RFP (Set One), No. 33; and (C) pay Defendant Staffpay a total of \$1,200.00 in monetary sanctions. Defendant Staffpay to give notice.
11	Keller vs. Etheridge	<u>Demurrer (re First Amended Complaint)</u> The court OVERRULES the general demurrer filed by Defendants KEVIN M. ETHERIDGE (individually) and KEVIN M. ETHERIDGE and CARALI S. ETHERIDGE, Trustees of the ETHERIDGE LIVING TRUST DATED September 1, 2020 to the third cause of action (nuisance) in the First Amended Complaint (FAC) filed by Plaintiffs ERIC KELLER and TRACY KELLER. Defendants argue that Plaintiffs have not cured the defects identified in the court's prior ruling on Defendants' motion for judgment on the pleadings (MJOP) and instead, Plaintiffs continue to plead a time-barred permanent nuisance claim.

The court previously granted Defendants' MJOP with leave to amend, finding Plaintiffs' nuisance claim to be time-barred. The court ruled in relevant part:

It is undisputed that an action for nuisance must be filed within three years. (Code Civ. Proc., § 338(b).)

"When a trespass is of a permanent nature, the cause of action accrues when the trespass is first committed." (*Field-Escandon v. Demann* (1988) 204 Cal.App.3d 228, 233; accord *KFC Western, Inc. v. Meghrig* (1994) 23 Cal.App.4th 1167.) For continuing nuisances, on the other hand, the statute of limitations period does not run while the nuisance persists and continues to cause harm. (*Tracy v. Ferrera* (1956) 144 Cal.App.2d 827, 829.) "[T]he two primary characteristics of a continuing nuisance or trespass are: (1) the nuisance[] is abatable, and/or (2) the damages from the nuisance[] may vary over time." (*Spar v. Pacific Bell* (1991) 235 Cal.App.3d 1480, 1485.) "If a nuisance is permanent, then in the ordinary course the plaintiff must 'bring one action for all past, present and future damage within three years after the permanent nuisance is erected. [Citations.] . . . Damages are not dependent upon any subsequent use of the property but are complete when the nuisance comes into existence. [Citation.]" [Citation.]" (*Capogeannis v. Superior Court* (1993) 12 Cal.App.4th 668, 675-676.)

Infrastructure such as sewer lines and telephone conduits and wires generally constitute permanent nuisances. (See, e.g., *Field-Escandon v. Demann*, supra, 204 Cal.App.3d at p. 234 [re 25-year-old sewer line]; *Spar v. Pacific Bell* (1991) 235 Cal.App.3d 1480, 1486 [re 25-year-old telephone conduit, wires, and manhole intended to be serviceable for at least 100 years, regardless of the fact the telephone company removed the structures prior to trial].) In *Field-Escandon v. Demann*, the court upheld summary judgment based on the statute of limitations where the alleged nuisance was a sewer line that had been installed 25 years earlier, despite the fact the plaintiffs learned of the

sewer within the limitations period. (*Field-Escandon v. Demann*, supra, 204 Cal.App.3d at p. 234.)

(5/8/26 Minute Order [ROA 216].)

The court did not consider Plaintiffs' argument at the hearing that the sewer line is broken, noting the allegations in the complaint challenge only the existence of the sewer line, not any continuing nuisance due to potential harm from a damaged sewer line. (Ibid.)

The FAC here addresses the defects identified by the court's previous ruling. The FAC now alleges that the sewer line suffers from leakage, due to the line's being "rotten in certain places wherein the cast iron [has] deteriorated completed." (See FAC ¶¶ 31, 54-56.) Despite Defendants' argument to the contrary, Plaintiffs need not allege with specificity the exact location and/or time of each sewage leak—only sufficient facts, in "ordinary and concise language" (Code Civ. Proc., § 425.10(a)(1)), "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.)

As Plaintiffs note, California has a general liberal pleading standard on demurrer.

Unlike the situations in *Field-Escandon v. Demann* and *Spar v. Pacific Bell* where the plaintiffs argued the existence of the permanent structure itself constituted a trespass, Plaintiffs' claim here is now based in part on the continuing intrusion of sewage created by a deteriorating sewer line. Even if the intrusion created by the existence and location of the sewer line itself cannot be challenged, the deteriorating condition of that line has allegedly created a separate and continuing nuisance, which Plaintiffs may challenge.

This situation appears analogous to *Baker v. Burbank-Glendale-Pasadena Airport Authority*, where the plaintiffs challenged the continuing noise, smoke, and vibration intrusions created by airport operations. (See *Baker v. Burbank-Glendale-Pasadena Airport Authority* (1985) 39 Cal.3d 862 [concluding the plaintiffs could elect whether to

		treat the airport noise and vibrations to be a continuing or permanent nuisance].) The Baker plaintiffs brought suit against a neighboring airport authority for noise, smoke, and vibrations from the airport’s continuing operations. (<i>Id.</i> at 868-870.) The trial court found the claim to be time-barred, having concluded the claim for nuisance had accrued when the airport was acquired by a public entity. (See <i>id.</i> at 868.) The appellate court disagreed, finding the continuing airport operations to be “the quintessential continuing nuisance. Although federal law precluding interference in any way with flight patterns and schedules as an element of permanency to an otherwise continuing problem, it does not mandate that the overall nuisance is a permanent one.” (<i>Id.</i> at 873.) The court found particularly compelling that the airport operator had a separate duty to reduce noise. (<i>Id.</i> at 873.) To the extent Defendants argue that the requested injunctive relief to cap and re-route the sewer line confirms the “true nature” of Plaintiffs’ claim as challenging the existence of the sewer line itself, the court does not find this argument compelling. The FAC alleges that repairing the existing sewer line would require “a complete overhaul of the sewer system” that would cause harm to Plaintiffs’ pool, slope, hardscape, and landscaping. (See FAC ¶¶ 33, 37.) These alleged facts support Plaintiffs’ electing to pursue a remedy that does not further interfere with their property. In sum, the demurrer is OVERRULED. Defendants SHALL file and serve an answer to the First Amended Complaint within 10 days. (Cal. Rules of Ct., rule 3.1320(g).) Plaintiffs to give notice.
12	Orange County Sanitation District vs. Jackson	<u>Demurrer (re Second Amended Cross-Complaint)</u> The court SUSTAINS, without leave to amend, Cross-Defendant CITY OF HUNTINGTON BEACH (the City) general demur to the second, third, fourth and fifth causes of

action of the Second Amended Cross-Complaint (SACC) filed by Cross-Complainants DONALD A. ISKIERKA, VIRGINIA L. ISKIERKA, PHILIP J. RIZZO, ANDREA L. RIZZO, HOOMAN K SHAHIDI, NAZANIN GHAFARIZADEH, BEVERLY K. UERLING, DEREK J. UERLING, MARK GERSON, MYRA GERSON, OLEG VOLF, YANINA GINZBERG, DEAN E. WEST, DEBORA A. WEST, FRANCIS LA PLACA, GAETANO LA PLACA, SHERI LA PLACA, KOZO TERAJIMA, FRANK H. CLARKE III, GERARD F. MCCABE, CATHERINE F. MCCABE, and HELEN J. LOWELL.

The SACC asserts causes of action for

- 1) declaratory relief
- 2) equitable indemnity
- 3) declaratory relief
- 4) nuisance
- 5) dangerous condition of public property

The City is not named in the first cause of action.

2nd C/A (equitable indemnity)

“The right to indemnity flows from payment of a joint legal obligation on another’s behalf.” (*Expressions at Rancho Niguel Ass’n v. Ahmanson Developments, Inc.* (2001) 86 Cal.App.4th 1135, 1139, citing Civ. Code, § 1432; *Western Steamship Lines, Inc. v. San Pedro Peninsula Hospital* (1994) 8 Cal.4th 100, 114.) “The elements of a cause of action for indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is contractually or equitably responsible.” (*Ibid.*, emphasis in original.) “With limited exception, there must be some basis for tort liability against the proposed indemnitor.” (*BFGC Architects Planners, Inc. v. Forcum/Mackey Construction, Inc.* (2004) 119 Cal.App.4th 848, 852 [duty owed by proposed indemnitor is generally based on duty owed to the underlying plaintiff].)

The SACC alleges the following: “The primary liability for the injuries and/or damages, if any, sustained by OCSA rests upon each Cross-Defendant by virtue of their negligence and active contribution towards the creation of the alleged nuisance. The liability of Cross-Complainants, if

any, are secondary, passive, and vicarious to the liability of each Cross-Defendant.” Specifically, “such liability would be a direct result of the City’s violation of a mandatory duty to ensure that the construction and maintenance of the Improvements would not interfere with OCSD’s use of the Easement and that no damage would result to that Easement as a result of the Improvements which the City permitted.” (SACC, ¶ 46.) The alleged “mandatory duty” is “[p]ursuant to Gov. Code, §§ 815.6 and 835, Civil Code §§ 3479-3481, the Easement, the condemnation judgment that created the Easement, and applicable California statutes requiring compliance therewith...” (SACC, ¶ 35.)

The SACC does not allege any facts showing the City’s violation of a mandatory duty, and the court need not assume the truth of the legal conclusion alleged in paragraph 46 of the SACC. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967, citations omitted [in ruling on demurrer, the court does not “assume the truth of contentions, deductions or conclusions of law”].)

Importantly, California public entities are not subject to common law tort liability; all liability must be pursuant to statute. (Govt. Code, § 815(a); see *also B.H. v. County of San Bernardino* (2015) 62 Cal.4th 168, 179 [“Under the California Government Claims Act (Gov. Code § 810 et seq), governmental tort liability must be based on statute”].)

Government Code section 815.6 (one of the statutes cited in the SACC) provides a statutory exception to the general rule of public entity immunity. It provides, “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” (Govt. Code, § 815.6, emphasis added.) In turn, Government Code section 810.6 defines “enactment” to mean “a constitutional provision, statute, charter provision, ordinance or regulation.” (Govt. Code, § 810.6.)

Here, the SACC fails to allege any enactments upon which liability under section 815.6 could be based. Instead, it

alleges in conclusory form that the City owed a duty pursuant to Government Code sections 815.6 and 835, Civil Code sections 3479-3481, the Easement, the condemnation judgment that created the Easement, and “applicable California statutes requiring compliance therewith.” (SACC, ¶ 35.)

Section 815.6 does not establish a mandatory duty. It states that a public entity is liable for certain injuries when a public entity is under a mandatory duty. (Govt. Code § 815.6.)

Section 835 makes a public entity liable in certain circumstances for “injury caused by a dangerous condition of its property.” (Govt. Code § 835; see also *Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 148, as modified (Apr. 7, 2003), quoting Cal. Law Revision Com. com., 32 West’s Ann. Gov. Code, supra, foll. § 830, p. 299 [“A public entity may be liable only for dangerous conditions of its own property.”].) Section 835 does not establish a mandatory duty under the facts of this case.

Civil Code sections 3479-3481 define nuisance. The code sections do not impose a mandatory duty on the City to approve or deny a permit.

Cross-Complainants also rely on *Board of Directors of Turlock Irr. Dist. v. City of Ceres* (1953) 116 Cal.App.2d 824 (“Turlock”) and *Elson v. Public Utilities Commission* (1975) 51 Cal.App.3d 577. As the City notes, the court previously rejected the applicability of these opinions to this case in its 1/23/26 ruling sustaining the demurrer to the First Amended Cross Complaint, and its 7/11/25 ruling sustaining the demurrer to the original Cross Complaint. (ROAs 233, 198.)

Turlock is factually inapposite because it involved a city’s liability to a pipeline easement holder for increasing traffic by building public streets over the pipeline. (*Turlock*, 116 Cal.App.2d at 831–832.) Further, *Turlock* pre-dates the enactment of the Government Claims Act, so there is no discussion of the statutory basis of the defendant city’s liability in that case. In sum, *Turlock* does not stand for the

proposition that a city can be liable for exercising its discretion to issue permits to a homeowner, even if the permits allow building that may interfere with another party's easement rights.

Elson also does not support Cross-Complainants' argument. In *Elson*, the appellate court found the existence of the pleading of a mandatory duty under an enactment. (*Elson v. Public Utilities Commission* (1975) 51 Cal.App.3d 577, 582 ["Therefore, when Blue and White operated without insurance it was in violation of a statute and the commission had a mandatory duty to prevent that violation"].) *Elson* reasoned that the immunity provided under section 818.4 did not apply because "section 818.4 provides immunity only for discretionary activities," but the commission had a ministerial (i.e., non-discretionary) duty to ensure that a passenger bus business was operating with liability insurance; the commission could be liable because it had no discretion to not revoke the license of an uninsured passenger bus. (*Id.* at 589.)

Unlike in *Elson*, Cross-Complainants have failed to allege any enactments that would confer a mandatory duty on the City here. Instead, the City's alleged issuance of the permits that allegedly cause Cross-Complainants' injuries appear to be precisely the type of acts that are immunized under Government Code sections 818.4 and 821.2.

Government Code section 818.4 provides,

"A public entity is not liable for an injury caused by the issuance, denial, suspension or revocation of, or by the failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where the public entity or an employee of the public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked."

(Govt. Code, § 818.4.)

Government Code section 821.2 is nearly identical, except it applies to public employees:

“A public employee is not liable for an injury caused by his issuance, denial, suspension or revocation of, or by his failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where he is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked.”

(Govt. Code, § 821.2.)

Accordingly, the court SUSTAINS the demurrer to the second cause of action for equitable indemnity.

4th C/A (nuisance)

For the nuisance claim, the SACC alleges the following:

“Without necessarily admitting the allegations contained therein and for the purposes of illustration only, the First Cause of Action in OCSD’s Complaint alleges that Cross Complainants’ construction, placement, and/or maintenance of the Improvements constitutes a public and private nuisance. To the extent these allegations are proven at trial, the City (by engaging in the conduct alleged herein) will have actively created or assisted in the creation of that alleged nuisance.”

(SACC, ¶ 56.)

A cause of action for nuisance requires that the defendant created a condition or permitted a condition to exist. (See, e.g., CACI No. 2020 [public nuisance] and No. 2021 [private nuisance].)

Here, the only conduct alleged in the SACC that may constitute “actively creating” a nuisance is the issuance of the permits. (SACC, ¶¶ 30-35.) As discussed above, that conduct is immune pursuant to Government Code Sections 818.4 and 821.2.

In opposing the demurrer, Cross-Complainants rely on *Hill v. People ex rel. Department of Transportation* (1979) 91

Cal.App.3d 426, 432. In *Hill*, the state was sued for its alleged negligence in issuing a special permit that allowed the codefendants to transport an oversized load measuring 15 feet 7 inches in height on the public highways and attaching to the permit a route that the codefendants were to use that included an overpass with a height of only 15 feet 3 inches. (*Hill*, 91 Cal.App.3d at 428.) The codefendants' trailer struck the overpass and struck the plaintiff's car. (*Ibid.*) The complaint alleged the state negligently issued the permit. The Court of Appeal held that while the overpass was not dangerous for use by normal vehicles, the state's conduct in permitting its use by a vehicle that was too high created a dangerous condition. (*Id.* at p. 430.) Given "the unusual circumstances of this case, the Legislature could not have intended that the permit immunity of section 818.4 should defeat the governmental liability under section 835." (*Hill*, 91 Cal.App.3d at 431-432.) There was "no theory which could justify an exercise of discretion to send a 15-foot 7-inch trailer along a route with a 15-foot 3-inch overpass." (*Id.* at 432.)

Hill, however, does not support the broad-reaching proposition suggested in Plaintiff's Opposition that "governmental immunity [does] not apply because the issuance of the permit created a dangerous condition." *Hill* involved "unusual circumstances" and a dangerous condition created *on the City's own property*. (See, e.g., *Hill*, 91 Cal.App.3d at 431 ["None of the cases relied upon by respondent is controlling, since none involved a situation where the government's issuance of a permit created a dangerous condition of the government's own property as defined in section 830, subdivision (c)."].) Here, by contrast, the City did not own the land. While Cross-Complainants suggest that the City had the power to control the property by having the authority to prevent the subject improvements, such an interpretation of the City's authority appears too broad. *Hill* is clearly distinguishable.

Accordingly, the court SUSTAINS the demurrer to the fourth cause of action for nuisance.

5th C/A (dangerous condition of public property)

For a cause of action for dangerous condition of public property, a plaintiff must plead: “(1) a dangerous condition existed on the public property at the time of the injury; (2) the condition proximately caused the injury; (3) the condition created a reasonably foreseeable risk of the kind of injury sustained; and (4) the public entity had actual or constructive notice of the dangerous condition of the property in sufficient time to have taken measures to protect against it.” (*Brenner v. City of El Cajon* (2003) 113 Cal.App.4th 434, 439, citing Govt. Code, § 835.)

The SACC alleges,

“Without necessarily admitting the allegations contained therein and for the purposes of illustration only, the First Cause of Action in OCSD’s Complaint alleges that Cross Complainants’ construction, placement, and/or maintenance of the Improvements poses a substantial risk to the health and safety of the public by blocking access to a public utility. To the extent these allegations are proven at trial, the City (by engaging in the conduct alleged herein) will have actively created or assisted in the creation of that alleged dangerous condition on public property (i.e., the public sewer lines and Easement in and around the area of the Improvements).”

(SACC, ¶ 62.)

Like the nuisance claim, the SACC alleges the City “actively created or assisted in the creation” of a dangerous condition on public property. As with the nuisance claim, the SACC does not allege facts showing that the dangerous condition existed on public property.

Cross-Complainants argue that privately-owned property is considered public property where an easement over it is owned by a public entity, citing to *People v. Tapia* (2005) 129 Cal.App.4th 1153. *Tapia*, a criminal case, held that a “a public sidewalk on an easement of way which has been granted to a public entity cannot fairly be characterized as private property, as that term is used in [Penal Code] section 626.9.” (*Id.* at 1166.) *Tapia* did not involve

Government Code sections 830 or 835 or involve a dangerous condition claim.

The demurrer to fifth cause of action is also SUSTAINED.

3rd C/A (declaratory relief)

“Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.” (Code Civ. Proc., § 1060.) “The court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.” (Code Civ. Proc., § 1061.)

For their third cause of action for declaratory relief, Cross-Complainants allege:

“An actual controversy has arisen and now exists between Cross-Complainants and Cross-Defendants the City, ROES 51 through 100, and each of them, concerning the respective rights and duties of each, in that it is the contention of Cross-Complainants that they are entitled to defense, indemnification and/or contribution from Cross-Defendants related to and arising out of the Improvements. Second Amended Cross-Complaints are informed and believes and thereon allege that Cross-Defendants contend to the contrary.”

(SACC at ¶ 51.)

For this claim, Cross-Complainants “request judicial determinations as follows:

- a. That each of the Improvements that are the subject of OCSD's Complaint were permitted and approved by the City;
- b. Whether the Improvements approved by the City constitute a dangerous condition on public property;
- c. Whether the Improvements approved by the City constitute a public or private nuisance;
- d. The percentage or ratio of contributing fault as between all parties so that the actual contributing fault of each party can be determined;
- c. The responsibilities of the Cross-Defendants for any and all litigation costs incurred by Cross-Complainants in defending the underlying Action."

(SACC at ¶ 53.)

As the court notes in its prior ruling, "Cross-Complaints are seeking apportionment of fault, but they have not set forth any facts showing they are entitled to any indemnity from the City. They have failed to state a claim for declaratory relief." (ROA 198.)

Whether a mandatory duty exists is a question of law. (*Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 499.) Because there is no apparent statutory basis for the City's liability pursuant to the equitable indemnity claim and there is no basis for tort liability on the part of the City, the demurrer is also properly sustained as to the declaratory relief claim, which is "wholly derivative" of the indemnity claim in that it seeks an apportionment of the City's "fault." (See *Ball v. FleetBoston Financial Corp.* (2008) 164 Cal.App.4th 794, 800 ["Where a trial court has concluded the plaintiff did not state sufficient facts to support a statutory claim and therefore sustained a demurrer as to that claim, a demurrer is also properly sustained as to a claim for declaratory relief which is 'wholly derivative' of the statutory claim"]; see also *Jackson v. Teachers Ins. Co.* (1973) 30 Cal.App.3d 341, 344 [trial court did not err in sustaining insurer's demurrer to insured's declaratory relief claim where the complaint showed there was no possible cause of action on the facts alleged; "the remedy of declaratory relief is subject to an informed and sensible discretion of the trial judge"].)

		Accordingly, the demurrer to the third cause of action is also SUSTAINED. Re Leave to Amend: On demurrer, a court determines whether the complaint states facts sufficient to constitute a cause of action. If the court sustains the demurrer, it must decide whether to grant leave to amend. Leave to amend should be granted if there is a reasonable possibility that the defect can be cured by amendment. Plaintiff (or here, Cross-Complainant) has the burden of proving that there is a reasonable possibility that the defect can be cured by amendment. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) Given that Cross-Complainants have had multiple opportunities to state a viable claim, and Cross-Complainants have not met their burden of establishing that there is a reasonable possibility that the defects in the SACC can be cured by amendment, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. Moving party to give notice.
13	Ama Investors, LLC vs. Pro Motorcars Inc	<u>Ds' Motion to Tax Costs</u> <u>P's Motion to Strike or Tax Costs</u> As explained below: The court GRANTS Plaintiff AMA INVESTORS, LLC's motion to tax costs in its entirety. The court DENIES Defendants PRO MOTORCARS, INC.'s and Mehrdad Jandarian's motion to tax costs. Legal Standard Plaintiff and Defendants filed competing motions to tax/strike costs. Each claim that it is the prevailing party, that the opposing party is not the prevailing party, and that certain costs items in the memorandum of costs are not recoverable.

In general, the prevailing party is entitled as a matter of right to recover costs for suit in any action or proceeding. (See, e.g., Code Civ. Proc., § 1032(b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606; *Scott Co. Of Calif. v. Blount, Inc.* (1999) 20 Cal.4th 1103, 1108.) The term “prevailing party” is defined by statute to include: The party with a net monetary recovery; a defendant who is dismissed from the action; a defendant where neither plaintiff nor defendant recovers anything; and a defendant as against those plaintiffs who do not recover any relief against that defendant. (Code Civ. Proc., § 1032(a)(4).)

Allowable costs under section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. (Code Civ. Proc., § 1033.5.) An item not specifically allowable under section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Id.* at 773-774.) On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.*)

As the court previously found, Plaintiff AMA Investors, LLC is the prevailing party in this action. Defendants Pro Motorcars, Inc. and Mehrdad Jandarian are therefore not entitled to costs. Accordingly, Plaintiff’s motion to strike/tax the entirety of Defendants’ memorandum of costs is GRANTED.

Given this finding, the court will proceed with addressing the items listed in Defendants’ motion to tax costs in the order that Defendants addressed them in their motion.

Electronic Fees

Defendants argue that Plaintiff should not be able to recover fees related to vendor charges, technology fees, and/or fees that are not specifically mandated by the court.

Code of Civil Procedure section 1033.5(a)(13) provides for the recovery of “[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.”

Here, the court finds that Plaintiff’s claim of \$582.42 for electronic filing fees to all be reasonably necessary fees related to the electronic filing or service of documents through an electronic filing service provider. The court will not tax or strike any of these costs.

Other Costs

Defendants argue that \$144.56 in costs related to two courtesy copies should be taxed/costs because they were not required by the court, are related to delivery and/or vendor charges.

The court finds that Plaintiff may recover these costs under the section that allows for “items not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion.” (Code Civ. Proc., § 1033.5(c)(4).) Plaintiff explains that these costs were incurred to comply with the court’s local rules related to delivery of a trial binder. As such, the court finds that these costs are reasonably necessary to the conduct of the litigation. The court will not tax/strike these costs.

Service of Process

Defendants argue that \$247.08 in fees related to service of process was improper because it shows multiple attempts to serve.

The court finds that these are recoverable costs and necessary to the conduct of litigation. Where service at one location failed, it is reasonable to attempt to make additional service attempts.

The court will not strike/tax these costs.

Models, Enlargements, and Photocopies of Exhibits

Defendants argue that Plaintiff's request for \$181.79 for exhibit photocopies should be taxed/stricken because it includes special paper, drilling, setup, and shipping.

Code of Civil Procedure section 1033.5(a)(13) provides for the recovery of "models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact."

The court finds that Plaintiff has established that \$181.79 was a reasonable amount of costs that Plaintiff actually incurred in photocopies of trial exhibit binders, which were necessary for litigation. The court will not tax/strike these costs.

Filing and Motion Fees

Lastly, Defendants argue that \$795 in filing and motion fees are excessive because the charges include not only court fees but also vendor charge (e.g., eFiling charge or convenience fees).

Code of Civil Procedure section 1033.5(a)(13) provides for the recovery of "[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents."

The court finds that Plaintiff has substantiated \$795 of electronic filing and motion fees that Plaintiff actually incurred by vendors.

The court will not strike/tax these costs.

In sum, the court DENIES Defendants' motion in its entirety. Plaintiff AMA Investors, LLC is awarded costs in the total amount of \$1,950.85.

		Plaintiff to give notice.
14	Krishnamoorthy vs. The Irvine Company, LLC	<u>Motion for Summary Judgment and/or Adjudication</u> The hearing on this motion was continued from 8/14/26, to permit the parties to lodge surveillance footage referenced in their respective filings. (See 8/14/26 Minute Order.) The parties thereafter filed lodged copies of the surveillance footage (See ROAs 202 and 206), which this court has considered. The court DENIES Defendants THE IRVINE COMPANY LLC, IRVINE PARK WEST APARTMENTS LLC, and IRVINE MANAGEMENT COMPANY's (collectively, "Defendants") motion for summary judgment, and their alternative motion for summary adjudication directed at the Complaint filed by Plaintiffs RAMACHANDRAN KRISHNAMOORTHY and MAHESWARI RAMACHANDRAN. The Complaint asserts two causes of action arising against Defendants: (1) negligence/wrongful death and (2) premises liability/wrongful death. <u>Evidentiary Objections</u> The court OVERRULES Defendants' Objection Nos. 1–7 to the Declaration of Trevor A. Sherwood II. As to Objection No. 1, although the copy initially submitted with Plaintiffs' opposition did not bear a signature, Plaintiffs subsequently filed an executed declaration, curing the procedural defect. (Peabody Jr. Decl., ¶¶ 3-4, Exh. 8 [ROA 189]. See <i>Walton v. Victor Valley Community College Dist.</i> (2026) 119 Cal.App.5th 1164, 1170–1171 [accepting untimely corrected declaration, noting "A court should be cautious about granting summary judgment 'based on a curable procedural default, which deprives the opposing party of a decision on the merits' [citation] In the event of such defect, the 'proper response' is to grant an opportunity to cure so the motion can be resolve don the merits. [Citation].".]) The court OVERRULES Defendants' Objection Nos. 8–12 to the Declaration of Boyce Oandasan.

The court **OVERRULES** Defendants' Objection Nos. 13-23 and 25-27 to the Declaration of Frank A. Perez, Ph.D. The court **SUSTAINS** Defendants' Objection No. 24 based on lack of foundation, scope of expertise, and speculation. Perez has not demonstrated medical or other expertise sufficient to support his opinion that Decedent would not have died had a buoy/float line been installed.

The court **OVERRULES** Defendants' Objection No. 28 to the deposition testimony of Laurel Howeth.

Issues Sought to Be Adjudicated

The notice of motion identifies the following six "grounds" for Defendants motion for summary judgment or, alternatively, summary adjudication:

1. Defendants can affirmatively show there is no evidence of any dangerous condition at the location of the subject incident;
2. None of Plaintiffs' alleged conditions constitute a dangerous condition;
3. Defendants can affirmatively show that there is no evidence with which Plaintiffs can show that Defendants' conduct or actions caused Vishal Ramachandran ("Decedent") to drown;
4. There is no disputed material question of fact and that any conditions Plaintiffs' allege caused Decedent to drown were open and obvious, and therefore, as a matter of law, Defendants did not have a duty to warn of the conditions;
5. Defendants lacked actual or constructive notice of the conditions Plaintiffs allege caused Decedent to drown; and
6. There is no disputed material question of fact that Decedent agreed to a liability waiver in his lease agreement, and thus, as a matter of law, Plaintiffs' causes of action for premises liability and negligence are barred by the liability waiver Decedent signed as part of his lease agreement.

(Ds' Not. of Mot., at p. 2, lines 9-23.)

By contrast, the separate statement identifies seven specific issues for summary adjudication:

1. Issue 1: Defendants are entitled to summary adjudication on an issue of duty with regard to Plaintiffs'

allegations that Defendants owed a duty to use buoy-lines or float-lines in the Subject Pool.

2. Issue 2: Defendants are entitled to summary adjudication on Plaintiffs' allegations relating to the Virginia Gramm Baker Act.
3. Issue 3: Defendants are entitled to summary adjudication on Plaintiffs' allegations relating to California Building Code section 3109B.3.
4. Issue 4: Defendants are entitled to summary adjudication on Plaintiffs' allegations relating to California Health and Safety Code sections 116025, 116040, 116043, 116045, 116049.1, or 116060.
5. Issue 5: Defendants are entitled to summary adjudication on Plaintiffs' allegations relating to California Code of Regulations sections 65540, 65539, and 65545.
6. Issue 6: Defendants are entitled to summary adjudication on Plaintiffs' allegations relating to Orange County Health and Safety Regulations
7. Issue 7: Defendants are entitled to summary adjudication on Plaintiffs' allegations relating to City of Irvine Health and Safety Regulations.

If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts. (Cal Rules of Ct., rule 3.1350(b).)

Where only certain claims or defenses are raised, the court has no power to adjudicate others. (*Maryland Cas. Co. v. Reeder* (1990) 221 Cal.App.3d 961, 974.)

The notice must identify the causes of action or defenses to which the motion is directed, but need not identify the specific facts or issues within a properly identified claim or defense. (*Sequoia Ins. Co. v. Sup.Ct. (Norden)* (1993) 13 Cal.App.4th 1472, 1478.)

Here, Defendants' notice of motion identifies only six general grounds for the motion. It does not identify any of the seven

specific issues for summary adjudication set forth in the separate statement. Because those issues were not specifically stated in the notice and repeated verbatim in the separate statement, Defendants’ alternative MSA does not comply with rule 3.1350(b).

Also, Issues 2 through 7 identified in the Separate Statement appear to be improper issues to adjudicate here. Absent the special stipulated procedure under Code of Civil Procedure section 437c(t), summary adjudication may be granted only if it completely disposes of a cause of action, affirmative defense, qualifying damages claim, or issue of duty. (Code Civ. Proc., § 437c(f)(1).) Summary adjudication therefore may not ordinarily be used merely to eliminate one theory or component of a cause of action while leaving the cause of action for trial. (See *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241–243.)

Issues 2 through 7 seek summary adjudication only of Plaintiffs’ “allegations relating to” particular statutes and regulations. Those allegations constitute theories supporting Plaintiffs’ negligence and premises-liability causes of action; adjudicating them would not completely dispose of either cause of action. Nor are Issues 2 through 7 framed as affirmative defenses, qualifying damages claims, or issues concerning the existence or nonexistence of a duty. They therefore are not independently subject to summary adjudication under section 437c(f)(1).

Based on the above Defendants’ alternative motion for summary adjudication is DENIED. None of the seven issues identified in the separate statement was properly noticed under rule 3.1350(b), and Issues 2 through 7 additionally fail to satisfy the complete-disposition requirement of section 437c(f)(1). Nor did the parties comply with Section 437c(t).

The court proceeds to consider Defendants’ motion for summary judgment as to the action as a whole.

Scope of Pleadings

Again, the Complaint asserts two causes of action against Defendants: (1) negligence/wrongful death and (2) premises liability/wrongful death. Both causes of action arise from Decedent’s 7/21/23 drowning at a swimming pool alleged to have been owned, operated, controlled, and maintained by Defendants. According to the Complaint, Defendants owed duties to keep the property reasonably safe, conduct reasonable periodic inspections, warn of foreseeable dangerous conditions,

and remediate dangerous conditions discovered or that reasonably should have been discovered. (Compl., ¶¶ 23, 35.)

The Complaint also alleges that the pool was dangerous because Defendants failed to provide a buoy/float line, failed to construct the pool in a reasonably safe manner, and failed to install or maintain adequate drain covers and other safety devices designed to prevent entrapment and suction hazards. (Compl., ¶¶ 18, 26, 38.)

The Complaint also asserts that negligence per se exists under specified provisions of the Health and Safety Code, California Building Code section 3109B.3, California Code of Regulations, the Virginia Graeme Baker Act, and Orange County and City of Irvine regulations. (Compl., ¶¶ 24-25, 28, 36-37, 40.)

In their opposing papers, Plaintiffs argue that two underwater pool lights failed to illuminate, impairing visibility and delaying Decedent's detection and rescue. Defendants argue that the lighting theory is unpled and therefore cannot be used to defeat summary judgment. They further contend that Plaintiffs' pending motion for leave to amend does not cure the defect because leave has not been granted.

Although the Complaint does not expressly identify defective lighting, it alleges that Defendants failed to inspect, maintain, repair, and remedy unsafe conditions at the pool. (Compl., ¶¶ 23, 26, 35, 38.) The Complaint also asserts violations of Health and Safety Code sections 116040, 116043, and 116060. Construed liberally, these allegations may reasonably include Plaintiffs' theory that Defendants negligently failed to inspect and maintain the underwater pool lights. Thus, the court need not resolve Plaintiffs' pending motion for leave to amend to consider the lighting theory for purposes of the instant motion.

Defendants' Moving Papers

Defendants submit the following evidence in support of their motion:

- Decedent was a resident of Park West Apartments and leased an apartment from Irvine Park West Apartments LLC at the time of the incident. (DSS Nos. 1–5; Ahmed Decl., ¶ 3, Exh. A [Lease Agreement].)
- The Lease Agreement contains a liability waiver concerning claims arising from use of the common areas and amenities at Park West Apartments. (DSS No. 6;

		Ahmed Decl., ¶ 8, Exh. A [Lease Agreement].) - Decedent had previously used the Subject Pool on multiple occasions, including after sunset, and had used the pool after sunset approximately seven days before the incident. (DSS Nos. 7–8; Truxaw Decl., ¶¶ 6–9, Exhs. B–C [Plaintiffs’ depositions].) - Plaintiffs were not present at the Subject Pool when Decedent drowned. (DSS No. 9; Truxaw Decl., ¶ 10, Exhs. B–D [Plaintiffs’ depositions and interrogatory responses].) - Decedent drowned in the Subject Pool around sunset. (DSS ¶ 10; Truxaw Decl., ¶¶ 11–15, Exhs. E–I [Langford and Jain depositions and surveillance footage].) - The Irvine Police Department investigated the incident and characterized the drowning as an accident. (DSS Nos. 10–11; Truxaw Decl., ¶¶ 11–16, Exhs. J–L [Officer Hsu deposition, Police Report, Body-Camera Recording].) - The Orange County Health Care Agency regularly inspected the pools at Park West Apartments and inspected the Subject Pool the day after the incident. (DSS No. 12; Langford Decl., ¶ 5, Exh. A [Inspection Report].) - Prior to the incident, Defendants did not receive any complaints for the subject pool relating to slope, lighting, drains, or code compliance. (DSS No. 13; Langford Decl., ¶ 6.) - Surveillance footage shows Decedent began swimming at approximately 7:36 p.m., remained underwater beginning at approximately 8:07 p.m., was pointed out by Shashi Jain at approximately 8:13 p.m., and was removed from the pool at approximately 8:17 p.m. (DSS Nos. 14–19; Truxaw Decl., ¶ 14, Exh. I [surveillance footage].) - Shashi Jain testified that she was able to see Decedent underwater at approximately 8:14 p.m. and could see the bottom of the pool and Decedent at approximately 8:15 p.m. She also testified that lighting was not an issue. (DSS Nos. 25–26, 28; Truxaw Decl., ¶¶ 13, 22–23, 25, Exh. G [Shashi Jain deposition].) - Prashant Jain testified that he was able to see Decedent underwater at approximately 8:14 p.m. and that there was good visibility when he helped remove Decedent from the pool. He also testified that there was sufficient natural light. (DSS Nos. 24, 27, 29; Truxaw Decl., ¶¶ 13, 21, 24, 26, Exh. H [Prashant Jain deposition].) - Defendants’ pool-safety expert, Douglas Ferrell, inspected the alleged dangerous conditions and opined
--	--	---

that buoy/float lines were not legally required at the Subject Pool and that the pool drains did not cause suction entrapment. (DSS Nos. 31–34; Ferrell Decl., ¶¶ 10, 12.)

- Ferrell further opined that the drain covers and skimmers complied with the Virginia Graeme Baker Act and that the pool complied with California Building Code section 3109B.3. (DSS Nos. 35–37; Ferrell Decl., ¶ 12.)
- Ferrell found no violations of the Health and Safety Code provisions, California regulations, Orange County regulations, or City of Irvine regulations identified by Plaintiffs. (DSS Nos. 38–41; Ferrell Decl., ¶ 12.)
- Prior to the incident, Defendants had no notice of, and received no complaints concerning, the alleged dangerous conditions before the incident. (DSS Nos. 42–43; Langford Decl., ¶ 6.)

Dangerous Condition (Grounds 1-2)

“The elements of a cause of action for premises liability are the same as those for negligence.” (*Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1207.) The plaintiff must prove duty, breach of duty, causation, and damages. (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 446.)

Landlords owe a duty to exercise reasonable care in the management of their property and to maintain premises under their possession and control in a reasonably safe condition. (Civ. Code, § 1714(a); *Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.) This duty extends to a landlord who maintains a swimming pool on the property. (*Johnson v. Prasad* (2014) 224 Cal.App.4th 74, 76.) However, the mere occurrence of an accident on the property does not establish premises liability. (*Edwards v. California Sports, Inc.* (1988) 206 Cal.App.3d 1284, 1287.)

Based on DSS Nos. 7-44, Defendants contend there is no evidence that a dangerous condition existed and that none of the conditions alleged by Plaintiffs constituted a dangerous condition.

Plaintiffs do not dispute Defendants’ showing that the pool drains did not cause suction entrapment or that the pool complied with California Building Code section 3109B.3 concerning pool slope. (Plaintiffs’ Responses to DSS Nos. 34–37.)

Plaintiffs, however, argue that the underwater lighting and the absence of a buoy/float line created a dangerous condition.

Plaintiffs submit evidence that, at approximately 8:08 p.m., only one of the pool's three underwater lights illuminated, while the second shallow-end light and the deep-end light failed to illuminate. (Plaintiffs' Additional Material Facts ("AMF") No. 5; Exh. 1 [Surveillance Footage]; Exh. 8 [Sherwood Decl., ¶ 7]; Exh. 9 [Oandasan Decl., ¶ 9]; Exh. 11 [Perez Decl., ¶ 47].) Plaintiffs also present evidence that Park West acknowledged that one purpose of the underwater pool lights is to permit persons around the pool to see whether someone below the waterline is in trouble. (AMF No. 6; Exh. 4 [Howeth Depo., 54:5–21].)

Plaintiffs further dispute Defendants' characterization of the Jains' testimony, including Shashi Jain's testimony that "lighting was not an issue," relying on additional portions of their depositions showing that both witnesses initially had difficulty locating Decedent underwater from their respective positions. (Plaintiffs' Responses to DSS Nos. 24–29; Exh. 2 [Prashant Jain Depo., 62:6–66:8]; Exh. 3 [Shashi Jain Depo., 55:17–56:22, 71:24–72:24, 77:16–78:10].)

Plaintiffs' expert Frank Perez opines that the single illuminated shallow-end light was insufficient to permit persons in the relevant locations to see Decedent at the bottom of the deep end and that illumination of the other two lights would have increased Decedent's visibility. (Exh. 11 [Perez Decl., ¶¶ 48–49].)

Plaintiffs have raised a triable issue as to whether two of the underwater lights failed to operate as intended at the time of the incident and whether the resulting inadequate illumination rendered the Subject Pool unreasonably unsafe. A reasonable trier of fact could infer from the failure of two underwater lights, the Jains' initial difficulty locating Decedent, the stated safety purpose of the underwater lighting, and Plaintiffs' expert evidence, that the lighting condition created an unreasonable risk of harm.

Because the evidence concerning the underwater lighting independently raises a triable issue sufficient to defeat Grounds 1 and 2, the court need not determine whether the absence of a buoy/float line independently rendered the Subject Pool unreasonably unsafe.

Thus, Defendants' motion for summary judgment based on Grounds 1 and 2 is therefore DENIED.

Causation (Ground 3)

Notwithstanding proof of the landlord's duty and breach, negligence liability requires that plaintiff prove the landlord's breach was the proximate or legal cause of the injuries suffered. Plaintiff must establish a nonspeculative, substantial link or nexus between the omission and the injury. (See *Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1105 —summary judgment for landlord properly granted, based on landlord's undisputed showing that evidence was insufficient to reach conclusion whether house fire was started due to heater malfunction or due to proximity of combustible materials.)

Based on DSS Nos. 7–44, Defendants contend there is no evidence that any act or omission by Defendants caused or contributed to Decedent's drowning. Specifically, Defendants argue that Plaintiffs have failed to establish that any alleged dangerous condition was a substantial factor in Decedent's death.

However, as discussed above, Plaintiffs have presented evidence raising a triable issue as to whether two of the underwater lights failed to operate as intended at the time of the incident and whether the resulting inadequate illumination impaired visibility.

Further, Plaintiffs' expert Frank Perez opines that, had all three underwater lights illuminated, Decedent could have been identified substantially earlier, thereby advancing the initiation of lifesaving measures. (Exh. 11 [Perez Decl., ¶¶ 50–51].) Kevin Shaw, M.D. opines that Decedent suffered cardiac arrest as a result of prolonged hypoxemia, did not receive CPR until approximately 10 minutes after submersion, and, had he been identified and removed from the pool within six to seven minutes of submersion with high-quality CPR initiated, more likely than not he would have survived. (AMF Nos. 13–15; Exh. 10 [Shaw Decl., ¶¶ 42, 50–52, 56].)

Plaintiffs have raised a triable issue as to whether the failed underwater lighting was a substantial factor in delaying Decedent's detection and rescue and, in turn, contributed to his death. Thus, a triable issue of material fact exists as to causation.

Accordingly, Defendants' motion for summary judgment based on Ground 3 is DENIED.

Open and Obvious (Ground 4)

Because landlords are not insurers of safety, they generally have no duty to warn of a danger that is open and obvious or that a reasonable person would be expected to perceive. In such circumstances, the condition itself serves as a warning. (See *Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 145–147 [apartment complex owner had no duty to warn resident of obvious danger of rainwater current on driveway]; *Lopez v. Superior Court (Friedman Bros. Investment Co.)* (1996) 45 Cal.App.4th 705, 715–716 [factors bearing on whether condition “obvious”].)

Defendants argue that the alleged dangerous conditions were open and obvious and therefore that they had no duty to warn Decedent. Defendants rely on evidence that Decedent had previously used the Subject Pool on multiple occasions, including after sunset, and had used the pool after sunset approximately seven days before the incident. (DSS Nos. 7–8; Exh. B [Krishnamoorthy Depo., 35:2–23]; Exh. C [Maheswari Depo., 13:4–7, 25:25–26:10].) Plaintiffs do not dispute those facts.

However, Defendants’ evidence of Decedent’s prior use of the pool does not establish that the alleged lighting condition was open and obvious on the night of the incident. Defendants present no evidence that the same lighting failure existed during Decedent’s prior visits or that Decedent knew or reasonably should have known that two underwater lights would fail to illuminate that night.

Defendants have not established as a matter of law that the alleged inadequate underwater lighting was open and obvious. A triable issue exists as to whether the condition was reasonably apparent to Decedent.

Accordingly, Defendants’ motion for summary judgment based on Ground 4 is DENIED.

Actual/Constructive Notice (Ground 5)

Where the owner did not create the dangerous condition, a property owner is liable for the condition only if the owner had actual or constructive notice of it. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206 (“*Ortega*”).) Constructive notice exists where the condition existed long enough that, in the exercise of reasonable care, the owner should have discovered it. (*Id.* at p. 1206.) Property owners therefore have a duty to conduct reasonable inspections of areas under their control. (*Id.* at p. 1205; *Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 432.) Where there is no direct evidence of how long a condition existed, evidence that a reasonable inspection

was not conducted within a reasonable period before the accident may support an inference that the condition existed long enough to have been discovered. (*Ortega*, 26 Cal.4th at 1210–1213.)

Defendants argue that they did not have actual or constructive notice of any alleged dangerous condition. Defendants submit evidence that before the incident, they received no complaints concerning the pool’s lighting, slope, drains, or code compliance, including from Decedent. (DSS Nos. 13, 43; Langford Decl., ¶ 6; Exh. B [Krishnamoorthy Depo., 35:2–36:2]; Exh. C [Maheswari Depo., 26:4–18].)

Although this evidence supports Defendants’ position as to actual notice, it does not by itself negate constructive notice.

Further, Plaintiffs submit evidence that Defendants’ regular pool inspections in July 2023 occurred in the morning and that the underwater lights were checked by manually activating a bypass switch. (AMF Nos. 7, 9; Exh. 5 [Langford Depo., 35:5–36:12]; Exh. 6 [Orozco Depo., 27:19–28:3, 32:12–33:18].) Orozco testified that, if he remembered correctly, all of the lights illuminated when he flipped the bypass switch on the morning of the incident. (Exh. 6 [Orozco Depo., 37:5–18].) Plaintiffs’ expert Sherwood opines that the morning bypass test was insufficient to determine whether the underwater lights would illuminate when needed at sunset. (Exh. 8 [Sherwood Decl., ¶ 9].)

Plaintiffs also submit evidence that by approximately 8:08 p.m., two of the three underwater lights did not illuminate. (AMF No. 5; Exh. 1 [Surveillance Footage]; Exh. 8 [Sherwood Decl., ¶ 7]; Exh. 9 [Oandasan Decl., ¶ 9]; Exh. 11 [Perez Decl., ¶¶ 47–48].)

Although the evidence does not establish precisely when the two lights failed, a triable issue remains as to whether the timing and manner of Defendants’ inspections were reasonably adequate to detect the lighting condition before evening pool use. Thus, Plaintiffs show that a triable issue exists as to constructive notice.

Accordingly, Defendants’ motion for summary judgment based on Ground 5 is DENIED.

Liability Waiver (Ground 6)

A valid release may shift responsibility for ordinary negligence from the defendant to the releasor and thereby negate the duty element of a negligence claim. (*Madison v. Superior Court* (1988)

203 Cal.App.3d 589, 600 (“*Madison*”); *Allan v. Snow Summit, Inc.* (1996) 51 Cal.App.4th 1358, 1372.) A residential landlord may also obtain a waiver for ordinary negligence arising from a tenant’s use of a recreational amenity that goes beyond bare habitability. (*Lewis Operating Corp. v. Superior Court* (2011) 200 Cal.App.4th 940, 948 [tenant-only health club].) However, under Civil Code section 1668, an anticipatory release is unenforceable to the extent it purports to relieve a party from liability for negligently violating a statutory duty relating to public safety. (*Whitehead v. City of Oakland* (2025) 17 Cal.5th 735, 746 (“*Whitehead*”).) A release also does not extend to future gross negligence. (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747.)

Defendants argue that the liability waiver in Decedent’s Lease Agreement bars Plaintiffs’ negligence and premises-liability claims. The existence of the waiver is undisputed. (DSS No. 6; Ahmed Decl., Exh. A [Lease Agreement, ¶ 14].) The waiver provides that Decedent “assumes all risk of harm in using the Premises and Common Areas & Amenities and agrees to hold Landlord and Landlord’s Related Parties harmless from all liability for any such injury, loss or damage.” (*Ibid.*) Defendants further contend that no statutory violation occurred and rely on Ferrell’s opinion that he found no violations of, among other provisions, Health and Safety Code sections 116040, 116043, and 116060. (DSS No. 38; Ferrell Decl., ¶ 12.)

In response, Plaintiffs argue that Decedent could not waive their independent wrongful-death claims. Although a decedent cannot relinquish an heir’s wrongful-death cause of action, that fact alone does not preclude application of the waiver. (See *Madison*, 203 Cal.App.3d at pp. 596, 600.) A valid release may shift responsibility for ordinary negligence to the decedent and thereby eliminate the predicate wrongful act supporting the heirs’ wrongful-death claim. (*Ibid.*)

Plaintiffs also argue that the waiver cannot release liability for statutory safety violations. The Complaint alleges various statutory violations including violations of Health and Safety Code section 116040 and 116043. (Compl., ¶¶ 24, 28, 36, 40.) Section 116040 provides, “Every person operating or maintaining a public swimming pool must do so in a sanitary, healthful and safe manner.” Section 116043 provides: “Every public swimming pool, including swimming pool structure, appurtenances, operation, source of water supply, amount and quality of water recirculated and in the pool, method of water purification, lifesaving apparatus, measures to insure safety of bathers, and measures to insure personal cleanliness of bathers

		shall be such that the public swimming pool is at all times sanitary, healthful and safe.” (See <i>Capri v. L.A. Fitness International, LLC</i> (2006) 136 Cal.App.4th 1078, 1085, 1087 [release unenforceable under Civil Code section 1668 as to alleged violations of Health and Safety Code sections 116040 and 116043].) As discussed above, Plaintiffs submit evidence that two of the three underwater lights failed to illuminate and rely on Sherwood’s opinion that the resulting incomplete illumination created an unsafe pool condition. (AMF No. 5; Exh. 1 [Surveillance Footage]; Exh. 8 [Sherwood Decl., ¶¶ 6–7, 9].) This evidence raises a triable issue as to whether the Subject Pool was operated and maintained in a safe manner as required by those statutes. Because a triable issue remains as to whether Defendants violated statutory duties relating to public safety, Defendants have not established that the waiver provides a complete defense as a matter of law. (<i>Whitehead, supra</i>, 17 Cal.5th at 746.) The court therefore need not determine whether Plaintiffs have also raised a triable issue of gross negligence. Accordingly, Defendants’ motion for summary judgment based on Ground 6 is DENIED. Plaintiffs to give notice.

--	--	--	--